

142 *The Trial of the Seven Bishops.*

send the said Declaration to be distributed throughout their respective Diocesses, to be read accordingly. But that the said Archbishop and Bishops, the eighteenth of *May*, in the said fourth Year of his said Majesty's Reign, having conspired and consulted among themselves to diminish the King's Power and Prerogative, did falsely, unlawfully, maliciously, and scandalously, make, compose, and write, a false, scandalous, malicious and seditious Libel, under Pretence of a Petition; which Libel they did publish in the Presence of the said King; the Contents of which Libel you have likewise heard read. To this they have pleaded Not Guilty: You, Gentlemen, are Judges of the Fact; if we prove this Fact, you are to find them Guilty.

Mr. Att. Gen. May it please your Lordship, and you Gentlemen of the Jury, you have heard this Information read by the Clerk, and it has been likewise opened to you at the Bar; but before we go to our Evidence, perhaps it may not be amiss for us, that are of Council for the King, now in the Beginning of this Cause, to settle the Question right before you, as well to tell you what my Lords the Bishops are not prosecuted for, as what they are; First, I am to tell you, and I believe you cannot yourselves but observe, that my Lords are not prosecuted as Bishops, nor much less are they prosecuted for any Point or Matter of Religion, but they are prosecuted as Subjects of this Kingdom, and only for a temporal Crime, as those that have injured and affronted
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